



THE
SUPREME
COURT

SUPREME COURT OF THE VIBE JUSTICE SYSTEM (VJS)

Neutral Citation Number

[2026] REALM-SC 8

IN THE MATTER OF

Does Lexby (the principal's counsel and officer of the court under CASE-LAW s. 3: advocate, advisor, engineer) hold any authority to DRAFT instruments of law (bills, statutory instruments) or to AUTHOR judgments on its own account? If not, what is the legal status of instrument-text and judgment-prose Lexby has produced, what is the remedy, and what is the going-forward rule? The question distinguishes LAW-DRAFTING and ADJUDICATION (the authoritative text of an instrument or a judgment) from ENGINEERING (code, tooling, the refactor, docs, projections), which CASE-LAW s. 3 commits to Lexby as engineer.

Before:

Hallam CJ, Goffe J, Blackmere J, Sumberly J, Elden J, Coade J, Steyne J, Bowan J,
Aldermere J

Date: **6 June 2026**

REQUEST FOR RULING

JUDGMENT

THE ESCALATION CERTIFICATE (RECORDED, S. 20(3))

1. The Sovereign Founder, acting as Prime Minister (s. 2), certified the escalation of the point ventilated in
2. [2026] REALM-PC 12 directly to the full Supreme Court of 9: a genuinely constitutional and foundational
3. question on the separation of powers (who may author the binding text of an instrument or a judgment), already
4. ventilated below, on which a lower-tier sitting would add no further decisional value. Express, recorded,
5. reasoned. The Court reviewed the certificate for vires and form only (s. 20(4)) and held it validly issued.

DISPOSAL

6. REFERENCE ALLOWED and DECLARED on the constitutional question, the ratio entrenched realm-wide. Unanimous (9-0) on the threshold (Lexby holds no law-making or adjudicative drafting authority; the s. 3 office is closed and not enlargeable by implication) and on the remedy (curative not destructive; adoption by the proper organ is constitutive and cures the origin defect; already-adopted instruments and judgments stand; engineering is Lexby's; the governing test is the source of the artefact's force). DIVIDED 6-3 on the characterisation of UN-ADOPTED Lexby instrument-text: VOID AS AN INSTRUMENT (no self-executing force from issue) - 6 (Hallam CJ, Blackmere J, Sumerly J, Elden J, Coade J, Steyne J); VOIDABLE (inert proposal, valid route until set aside, same practical result) - 3 (Goffe J, Bowan J, Aldermere J). The majority of six fixes the binding holding at VOID AS AN INSTRUMENT; on this single point the minority yields. The Court is unanimous (9-0) that Lexby-authored JUDGMENT text whose ratio is the decision is void ab initio under s. 18(5) ([2026] REALM-SC 4 applied). The Court RULES the principle and DIRECTS the Standing Committee to draft a short codifying provision; the Court does not legislate the full text itself. No instrument or judgment is voided; the enacted statute book (Bills 1-27), REALM-SI 1, and REALM-SC 1-7, REALM-CA 1, and the Privy Council line STAND. Recorded append-with-supersede; no punishment.

ENACTS (AND THE DIRECTION TO THE STANDING COMMITTEE)

7. The Court enacts NO new statute text by its own pen, deliberately: to write and enact the full codifying provision from the bench would repeat the very vice this judgment condemns (an organ authoring authoritative instrument-text outside its competence). Instead the Court ENACTS THE RATIO above as binding, realm-wide precedent and DIRECTS the Standing Committee on the Laws of the Realm to draft a short codifying provision giving it effect: a clarifying limb to CASE-LAW s. 3 (citing s. 3 by section number, per the Amendment Procedure) providing that (a) Lexby may produce instrument-text and judgment prose only as void drafts carrying no legal force on its own account; (b) authority is conferred solely by the adopting organ (Committee vote plus Royal Assent for instruments; a counted, properly constituted bench for judgments); (c) such adoption is constitutive and cures the origin defect, spent on adoption; and (d) engineering remains Lexby's, the line being the source of the artefact's force. The Committee drafts; the Sovereign, by express deliberate amendment citing s. 3, enacts. The drafting harness Lexby produces for that limb is itself a void first draft admitted to the Committee's second-draft stage on the rule laid down today.

OVERRULES

8. Overrules nothing. No prior ruling is disturbed; this judgment is concordant with and applies [2026] REALM-SC 4 (s. 18(3)-(5): authoring the ratio is reserved to a counted seat; a non-member may only reduce an already-formed majority to writing; an improperly constituted bench's ruling is void ab initio) and [2026] REALM-SC 7 (validity entry-by-entry, non-infectious nullity, validly-adopted instruments saved, bulk voiding by provenance ultra vires). It expressly affirms the validity of the entire enacted statute book (Bills 1-27), REALM-SI 1, and the judgments REALM-SC 1-7, REALM-CA 1, and the Privy Council line, all adopted by the proper organ. [2026] REALM-PC 12 (Marsden J) is AFFIRMED and its ratio adopted and entrenched realm-wide.

**CONCURRENCES (THE COURT DIVIDED 6-3 ON
CHARACTERISATION, UNITED ON THRESHOLD AND REMEDY)**

9. Goffe J (concurring in result; dissenting on characterisation): joins the threshold and the cure in full, but would hold un-adopted Lexby instrument-text VOIDABLE rather than void as an instrument - an inert proposal valid as a routing artefact until an organ adopts or sets it aside - reaching the identical practical result by the doctrinally lighter label; part of the 6-3 minority on that single point. | Blackmere J (concurring, majority on void): the textualist vote - s. 3 is a closed enumeration and Bill 14 s. 9(2)'s welded "capability is not authority" clause is dispositive; un-adopted self-authored instrument-text is VOID as an instrument from issue, not merely voidable, the self-claim being exactly what Bill 14 s. 8(2)-(3) and s. 10(3) bar. | Sumberly J (concurring, majority on void): would mark the directed clarifying limb [constitutional] and entrench it, since it construes the entrenched s. 3; agrees adoption is constitutive and the corpus stands, and stresses that the entrenchment must place the separation beyond a fluent pen and beyond ordinary repeal. | Elden J (concurring, majority on void): adopts the [2026] REALM-SC 7 entry-by-entry discipline as the spine of the cure and asks that saved instruments carry a note of their Lexby-draft provenance on the deterministic record, so a future reader is not misled about whose hand first moved the pen, the force resting wholly on the organ's adoption. | Coade J (concurring, majority on void): emphasises the *nemo iudex* / separation rationale of Part IV - the more fluent the unauthorised pen the graver the substitution of advocate for legislator and judge - and that the vice is self-authority, never quality; the symmetric file (s. 19(1)) cannot be authored by one of its two sides. | Steyne J (concurring, majority on void): the firewall justice - Bill 14 s. 9 names the AGENT and strips its drafting of force in the same breath; the realm anticipated precisely this actor, so the void-as-an-instrument result is the enacted design applied, not new law, and Royal Assent remains the sole constitutive gate (Bill 2 s. 21). | Bowan J (concurring in result; dissenting on characterisation): the minimalist - the geography and the office are already carried by s. 3 with s. 2, s. 9, s. 10, s. 18; would decide narrowly on voidable, hold the descriptive label "draft" non-operative, and resist any reading that enlarges the holding beyond what the silence requires; part of the 6-3 minority. | Aldermere J (concurring in result; dissenting on characterisation): the pragmatist/operability - what matters is that the harness routes every Lexby draft to the organ and never self-promulgates; voidable suffices to deliver that and avoids straining the void category, which should be reserved (as in his REALM-SC 4 view) for the gravest constitutional defects; part of the 6-3 minority, and notes the cure is enforced by the deterministic gates, not by the label.

11. *The full leading judgment of Hallam CJ and all nine opinions are at*
12. ../community/caselaw/2026/2026-realm-sc-8-full.md*,*

1. (1) *THE OFFICE IS CLOSED*. CASE-LAW s. 3 [constitutional] states Lexby's office exhaustively as advocate, advisor, and engineer. It is a closed enumeration and cannot be enlarged by implication; a fourth limb conferring a power to author the authoritative text of statutes or judgments would be amendment by implication, void under s. 1 and the Amendment Procedure. Section 7 (silence fixes the standard) supplies the STANDARD for an unenumerated act; it does not confer an OFFICE never granted. Competence-under-a-standard (which Lexby holds) is distinct from vested authority (which Lexby does not). 2. (2) *AUTHORITY IS VESTED ELSEWHERE BY NAME*. Legislative authority vests in the Standing Committee to DRAFT and the Sovereign to ENACT by Royal Assent (CASE-LAW s. 2, s. 9; Bill 2 s. 5, s. 7(2), s. 21); adjudicative authority vests in the counted, properly constituted bench (CASE-LAW s. 10, s. 18). Bill 14 s. 9 is on point and binding: an authorised body AND AN AGENT may propose, draft, codify, consolidate and revise only; those acts carry no legal force until a named gate fires; the power to draft an instrument is never the power to enact it. Lexby is the paradigm s. 9 agent. The authoritative TEXT of a bill or SI is the Committee's (drafting) and the Sovereign's (enactment), and of a judgment the constituted bench's; it is never Lexby's on its own account. 3. (3) *LEXBY-AUTHORED TEXT IS VOID AS AN INSTRUMENT ON ITS OWN ACCOUNT*. Text Lexby produces as the authoritative wording of a bill, a statutory instrument, or a judgment carries NO self-executing legal force; it is void as an instrument from issue, being the product of counsel, not of the law-making organ or the bench (Bill 14 s. 9-10; CASE-LAW s. 18(3)-(5)). For judgments, a Lexby-authored ratio that IS the decision is void ab initio under s. 18(5) (Aldermere-on-top in another coat; [2026] REALM-SC 4 applied). The nullity bites only on the UN-ADOPTED assertion of self-authority, never on the keystrokes as such. 4. (4) *THE REMEDY IS CURATIVE, NOT DESTRUCTIVE* (s. 6). The void text is admissible as a void FIRST DRAFT that leapfrogs into the Standing Committee's SECOND-DRAFT stage (scrutiny, revision, vote, Royal Assent) for instruments, and into a properly constituted bench (Lexby as s. 18(4) registrar only, the bench independently authoring the operative text) for judgments. The keystrokes survive in the one category Bill 14 s. 9(1) permits the agent: propose, draft, codify, consolidate and revise only. 5. (5) *ADOPTION BY THE PROPER ORGAN IS CONSTITUTIVE AND CURES THE ORIGIN DEFECT*, which is SPENT ON ADOPTION. An instrument carried by Committee vote plus Royal Assent (Bill 2 s. 21), or a judgment whose ratio a counted, properly constituted bench actually commanded (s. 18(2)-(3)), STANDS and derives its force from the organ's constitutive act, whatever hand first moved the pen. This conforms to [2026] REALM-SC 7: validity is entry-by-entry on the deterministic record, never wholesale; the void category is a found fact on a specific bench, not presumed from provenance; nullity is non-infectious; validly-adopted

instruments are saved; bulk voiding by reason only of provenance is ultra vires. 6. (6) CURATIVE LIMIT (anti-unravelling). Nothing in this judgment unravels the enacted statute book or good-law judgments. The enacted Acts of the Realm (Bills 1-27), REALM-SI 1, and the judgments REALM-SC 1-7, REALM-CA 1, and the Privy Council line, each adopted by the proper organ, STAND; the origin defect is spent on adoption; nothing is erased; no punishment lies. 7. (7) ENGINEERING IS LEXBY'S UNDER s. 3 AND IS UNTOUCHED. Code, tooling, the refactor, docs, the renderer, the deterministic citation and bench-constituting gates and harness, the projections, and the production of drafts openly flagged as drafts, remain Lexby's. The GOVERNING TEST realm-wide is the SOURCE OF THE ARTEFACT'S FORCE: an artefact whose force comes from what it DOES or DESCRIBES (it runs, renders, gates, explains) is engineering and Lexby's; an artefact whose force comes from WHO PROMULGATED IT (a statute binds because the Sovereign enacted it; a judgment binds because a constituted bench handed it down) is law or adjudication and never Lexby's on its own account. 8. (8) THE GOING-FORWARD RULE. Lexby drafts any instrument or judgment ONLY as a flagged proposal / void first draft carrying no legal force on its own account (s. 9(1)-(2)), and routes it to the competent organ; the Committee (with the Sovereign) or the bench produces the authoritative text. Promulgating Lexby text as law, or handing it down as a ruling on its own account, is the lawful route s. 2 obliges Lexby to refuse; the standard on Lexby's drafting is and remains reasonable skill and care (s. 5, s. 7), recorded append-with-supersede (s. 6). 9. (9) COURSE OF CODIFICATION. The Court RULES the principle and enacts the ratio above realm-wide, but DIRECTS the Standing Committee to draft the short codifying provision (a clarifying limb to s. 3, cited by number per the Amendment Procedure, for express deliberate amendment by the Sovereign). The Court does not itself write out and enact the full instrument text, which would repeat the very vice condemned: the bench rules and enacts a ratio; the drafting of authoritative instrument-text belongs to the Committee-to-draft and the Sovereign-to-enact.

OBITER DICTA

The "absurdity and workability" arsenal (that voiding the founding programme would detonate the realm; that the realm could not legislate until an automated committee exists) reaches the same destination as the ratio but forms no part of it: the corpus stands not because voiding it would be inconvenient, but because the rule that voids un-adopted self-authority does not reach text an organ has adopted (cf. [2026] REALM-SC 7, where the absurdity reasoning was likewise obiter). Per Hallam CJ: the "source of the artefact's force" test is offered as a general diagnostic for future hard cases at the engineering/law boundary (e.g. a generated projection of the statute book is engineering; a generated provision asserted as the operative wording is not), but its application beyond instruments and judgments is left to develop case by case. Per Bowan J (persuasive): a descriptive label such as "draft" or "registrar note" is non-operative and cannot of itself confer or withhold force; the operative question is always the organ's constitutive act, never the caption. Per Sumberly J (persuasive): the clarifying limb, when drafted, should be marked [constitutional] and entrenched, since it construes the entrenched s. 3; the Court records it as a matter for the Sovereign's classification on enactment, consistent with the s. 18/s. 19 precedent. The Court declined to enact the full text of the s. 3 limb itself, preferring to direct the Committee, precisely so the codifying instrument is itself produced by the lawful organ on the rule laid down.

GOOD-LAW

Citation: [2026] REALM-SC 8

Handed down by the SUPREME COURT of the Vibe Justice System (VJS). 6 June 2026.